

April 5, 2006



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and
Hazardous Materials
Safety Administration**

DOT-SP 14176
(FIRST REVISION)

EXPIRATION DATE: August 31, 2007

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Great Plains Industries, Inc.
Wichita, KS
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the manufacture, marking, sale and use of non-DOT specification metal refueling tanks containing certain Class 3 liquids. The Class 3 liquids will be discharged from the refueling tanks without removing the refueling tanks from the vehicle on which they are transported. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use or other uses not associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 177.834(h) in that the tank is unloaded while on a motor vehicle.

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5. BASIS: This special permit is based on the applications of Great Plains Industries, Inc. dated March 17, 2005 and additional information dated July 27, 2005, submitted in accordance with § 107.105 and the public proceeding thereon and additional information dated September 23, 2005.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identi- fication Number	Packing Group
Diesel fuel	3	NA1993	III
Ethanol	3	UN1170	II, III
Flammable liquids, n.o.s. (with vapor pressure of less than 16 psia at 130°F)	3	UN1993	II, III
Fuel, aviation, turbine engine	3	UN1863	II, III
Gasoline	3	UN1203	II
Kerosene	3	UN1223	III
Methanol	3	UN1230	II

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packagings are a 50 gallon or a 30 gallon metal non-DOT specification refueling tanks with a recessed electric pump, contained within an enclosed compartment. The tanks must be constructed of aluminum, steel or aluminized steel conforming with all the requirements for a DOT Specification UN31A or UN31B intermediate bulk container (IBC) except for water capacity. The tanks must be manufactured in accordance with Great Plains Industries, Inc, drawing 41214800 dated April 5, 2004, or 41204800 dated July 18, 2005 on file with the Office of Hazardous Materials Special Permits and Approvals OHMSPA).

b. TESTING - Each design type with the pump attached must meet the testing and certification requirements specified in § 178.803 for metal IBCs. Each tank must be periodically retested every 2.5 years in accordance with § 180.352.

c. OPERATIONAL CONTROLS -

(1) Tanks must be attended at all times during loading and unloading operations by a qualified person. For the purposes of this requirement, "attended" and "qualified" must have the meanings described in § 177.834(i)(3) and (4), respectively.

(2) Hoses may not be attached to discharge outlets during transportation.

(3) Tanks may not be manifolded together.

(4) Electrical power must be disconnected from the pump during transportation.

(5) Each tank must be marked and placarded in accordance with the requirements for IBCs.

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.

b. A person who is not a holder of this special permit, but receives a package covered by this special permit, may reoffer it for transportation provided no modification or change is made to the package or its contents and it is offered for transportation in conformance with this special permit and the HMR.

c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

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- d. Each packaging manufactured under the authority of this special permit must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by OHMSPA for a specific manufacturing facility.
- e. A current copy of this special permit must be maintained at each facility where the package is manufactured under this special permit. It must be made available to a DOT representative upon request.
- f. A test report documenting satisfactory testing of UN31A and UN31B IBCs in accordance with § 178.800 for each design must be on file with OHMSPA prior to sale.
- g. Packagings permanently marked 'DOT-E 14176', prior to October 1, 2007 may continue to be used under this special permit for the remaining service life of the packaging or until the special permit is no longer valid. Packagings marked on or after October 1, 2007 must be marked 'DOT-SP 14176'.
- h. Shipping papers displaying 'DOT-E 14176' may continue to be used until October 1, 2007, provided the special permit remains valid.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.

- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety -- OHMSPA, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "R. Ryan Porter", is written over a faint, circular official stamp.

for Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

April 5, 2006

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: DB:dl